

Shetland Islands Council (Omnibus Services) c. xxvii
Order Confirmation Act 1985

ELIZABETH II



1985 CHAPTER xxvii

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to Shetland Islands Council (Omnibus Services).
[22nd July 1985]

WHEREAS the Provisional Order set forth in the Schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the Schedule hereunto annexed is hereby confirmed. Confirmation of Order in Schedule.
2. This Act may be cited as the Shetland Islands Council Short title. (Omnibus Services) Order Confirmation Act 1985.

SCHEDULE

SHETLAND ISLANDS COUNCIL (OMNIBUS SERVICES)

Provisional Order to empower the Shetland Islands Council to operate an omnibus undertaking.

1973 c. 65. Whereas under the Local Government (Scotland) Act 1973 the Shetland Islands Council (hereinafter referred to as "the Council") are the local authority vested with the functions of an islands council in respect of the Shetland Islands Area:

And whereas the provision and maintenance of an adequate omnibus service for the conveyance of persons by road within the said Area is essential to the well-being of the inhabitants of that Area and of public benefit:

And whereas it is apprehended that certain existing omnibus services might be discontinued by those undertakers who now operate them and accordingly it is expedient, and considered to be of public and local advantage, that the Council should be empowered themselves to provide such services should such services be discontinued, and to provide services on routes where no present services exist:

1936 c. 52. And whereas the purposes of this Order cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore, in pursuance of the powers contained in the said Act of 1936, the Secretary of State orders as follows:—

Short title. 1. This Order may be cited as the Shetland Islands Council (Omnibus Services) Order 1985.

Omnibus undertaking.
1930 c. 43. 2. The Council shall be authorised to operate and maintain an omnibus undertaking on routes on which no omnibus service exists, and Part V of the Road Traffic Act 1930 shall accordingly apply to any such undertaking.

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